The doctrine of creative interpretation envisages an innovative judicial interpretation of the provisions of the Constitution. This doctrine says that the courts should evolve new concepts and new procedures in order to meet the requirements of the changing situations.

The judgement delivered by the Supreme Court in the *Golak Nath* case[94] (1967) is an important illustration of the doctrine of creative interpretation.

In this case, the Supreme Court embarked on a creative role by introducing for the first time in India the American doctrine of prospective overruling. According to this doctrine, an old precedent (stare decisis) can be overruled from a future date and not retrospectively.

While asserting a creative role for itself in the *Golak Nath* case[95] (1967), the Supreme Court made the following observation:

"Articles 32, 141 and 142 are couched in such wide and elastic terms as to enable this Court to formulate legal doctrines to meet the ends of justice. To deny this power to the Supreme Court on the basis of some outmoded theory that the Court only finds the law but does not make it is to make ineffective the powerful instrument of justice placed in the hands of the highest judiciary of this country."

Another significant manifestation of the doctrine of creative interpretation is the judgement delivered by the Supreme Court in the *Kesavananda Bharati* case[96] (1973). In this case, the Supreme Court innovated a new constitutional doctrine called 'the doctrine of basic structure of the constitution'. In fact, this judgement is regarded as the water-mark of the judicial creativity in India.

[1]Article 13(1) reads as follows: "(1) All laws in force in the territory of India immediately before the commencement of this Constitution, in so far as they are inconsistent with the provisions of this Part, shall, to the extent of such inconsistency, be void."

[2]Article 13(2) reads as follows: "(2) The State shall not make law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void."

[3]*R.M.D. Chamarbaugwalla* vs. *Union of India* (1957).

[4]*Ibid.*

[5]The Supreme Court observed: "The impugned Act minus this section can remain unaffected. The omission of this section will not change the nature or the structure or the object of the legislation. Therefore, the decision that Section 14 is ultra-vires, does not affect the validity of the rest of the Act".

[6]Paragraph 7 requires ratification under the proviso to Article 368(2) for excluding the jurisdiction of High Courts under Article 226 and Supreme Court under Article 136.

[7]Surendra Malik and Sudeep Malik, Supreme Court on Doctrines and Maxims, Eastern Book Company, 2014, pp. 697-698.

[8]*Basheshar Nath* vs. *Commissioner of Income Tax* (1958).

[9]Article 13(1) reads as follows: "(1) All laws in force in the territory of India immediately before the commencement of this Constitution, in so far as they are inconsistent with the provisions of this Part, shall, to the extent of such inconsistency, be void."